

Company No: 08506571

The Companies Act 2006
COMPANY LIMITED BY SHARES
ORDINARY RESOLUTIONS & SPECIAL RESOLUTIONS

passed as

WRITTEN RESOLUTIONS

of

ALPHA FMC GROUP LIMITED
(Company Number: 08506571)

(the "Company")

THURSDAY



RM 31/10/2013 #95
COMPANIES HOUSE

(Passed pursuant to section 288 of the Companies Act 2006)

Circulation Date *24 October* 2013

WE, the undersigned, being or representing the sole eligible member of the Company, HEREBY RESOLVE as follows

ORDINARY RESOLUTIONS

- 1 **THAT** the Company, in good faith and for the purpose of carrying on its business, enter into the arrangements (the "**Transaction**") to be effected under or pursuant to the documents listed in Appendix 1 to these resolutions (the "**Documents**") and perform its obligations and exercise its rights in relation to the Transaction
- 2 **THAT** the directors be authorised to pass and to implement such resolutions as they think fit in connection with the Company's entry into the Transaction and the performance of its obligations and the exercise of its rights in relation to the Transaction, including as regards approval and execution of such of the Documents to which it is to be party and all related matters.

SPECIAL RESOLUTIONS

- 3 **THAT** the articles of association of the Company be altered by the insertion of the following new article 14A after the existing article 14:

"14A Registration of shares

14A.1 Notwithstanding anything contained in these Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles)

14A.1.1 the directors (or director if there is only one) of the Company shall not decline to register any transfer of shares in the Company nor suspend registration of any such shares; and

14A 1.2 a holder of shares in the Company shall not comply with any provision of the Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles) which restricts the

transfer of shares or which requires any such shares to be first offered to all or any current shareholders of the Company before any transfer may take place,

where in any such case the transfer is or is to be:

- (a) in favour of a bank or institution (or nominee of such bank or institution) to which such shares have been mortgaged, charged or pledged by way of security, or*
- (b) executed by a receiver or manager appointed by or on behalf of any such bank or institution under any such security, or*
- (c) to any such bank or institution (or nominee of such bank or institution) pursuant to any such security*

14A 2 A certificate by any officer of such bank or institution that the shares were so charged and the transfer was so executed shall be conclusive evidence of such facts

14A 3 Notwithstanding anything contained in these Articles (including, for the avoidance of doubt, provisions incorporated from the Model Articles), the directors (or director if there is only one) of the Company may not exercise its right of lien over shares that have been mortgaged, charged or pledged by way of security to a bank or institution."

APPENDIX 1

Documents referred to above

1. a facility agreement to be entered into between the Company, Alpha FMC Group Holdings Limited (company number 08555831) (the "**Parent**"), Alpha Financial Market Consulting Group Limited (company number 07160664) and Alpha Financial Markets Consulting Limited (company number 04710715) (the "**Subsidiaries**") as the guarantors listed in Part A of Schedule 1 thereto, Beechbrook Capital LLP as Arranger and Agent, Beechbrook Mezzanine II Jersey Limited as Security Agent (the "**Security Agent**") and the financial institutions listed in Part B of Schedule 1 thereto (the "**Facility Agreement**")
- 2 a guarantee to be made under the Facility Agreement by the Company,
- 3 a debenture in favour of the Security Agent over all of the property, assets and undertaking, present and future of the Company,
- 4 a debenture in favour of Baird Capital Partners Europe Limited over all of the property, assets and undertaking, present and future of the Company,
- 5 a guarantee in favour of Baird Capital Partners Europe Limited;
6. a security trustee deed to be made between, amongst others, the Company, the Borrower, the Subsidiaries, Baird Capital Partners Europe Limited and Beechbrook Mezzanine II Jersey Limited,
- 7 an intra-group funding agreement to be made between the Company, the Parent and the Subsidiaries,
- 8 an intercreditor agreement to be made between, amongst others, (1) the Parent, (2) the Company, (3) the Subsidiaries, (4) Beechbrook Capital LLP as Mezzanine Facility Agent, (5) Beechbrook Mezzanine II Jersey Limited as Mezzanine Security Agent and Original Mezzanine Lender, (6) the Original Investor Loan Noteholders, the Original Management Loan Noteholders, the Loan Note Security Agent and the Original Shareholders (as such terms are defined in the Intercreditor Agreement) (the "**Intercreditor Agreement**"),
- 9 a blank stock transfer form in relation to the entire issued share capital of the Target,
- 10 a director's certificate dated on or about the date of this written resolution to be given by a director of the Company containing various certifications required pursuant to the Facility Agreement, and
- 11 a Utilisation Request; and
- 12 all other documents to be delivered pursuant to part 1 of schedule 2 (*Conditions Precedent to initial utilisation*) of the Facility Agreement.

Shareholders who wish to agree to such resolutions should signify that agreement by signing and returning this document to Eversheds LLP, 1 Wood Street, London EC2V 7WS marked for the attention of Jessica Burgess

If sufficient agreement is not received by the date being 28 days from the Circulation Date then these resolutions will lapse and shareholders will not be able to indicate agreement after that date

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Director

24 October 2013
Date

**For and on behalf of Alpha
FMC Group Holdings Limited**